



6. Defendant Viktor Kreckler failed in the above mentioned duties and is therefore negligent.

7. Defendant Viktor Kreckler's negligence was the direct and proximate cause of Plaintiff's injuries.

8. Plaintiff Gregory Horne's injuries and damages are permanent.

9. As a direct and proximate result of Viktor Kreckler's negligence, Gregory Horne has suffered lost wages.

10. Plaintiff, Gregory Horne, has incurred medical bills for the treatment of his injuries directly resulting from this collision.

11. As a direct and proximate result of Viktor Kreckler's negligence, Gregory Horne has experienced physical and mental pain and suffering, lost wages, and has lost the ability to perform usual activities, resulting in a diminished quality of life.

SECOND CAUSE OF ACTION

NEGLIGENCE PER SE OF VIKTOR KRECKER

12. Plaintiff realleges and incorporates herein by reference paragraphs 1 through 11 above as if fully restated verbatim.

13. Viktor Kreckler violated state and federal statutes and regulations including but not limited to Title 9 of the Indiana Code.

14. Defendant Viktor Kreckler's statutory violations directly and proximately caused Plaintiff's damages and injuries.

15. Defendant Viktor Kreckler is negligent per se based on these statutory and regulatory violations.

THIRD CAUSE OF ACTION

RESPONDEAT SUPERIOR OF IMPEL TRANSPORT, LTD

16. Plaintiff realleges and incorporates herein by reference paragraphs 1 through 15 above as if fully restated verbatim.

17. Defendant Viktor Krecker was the employee, agent, servant, or independent contractor for Impel Transport, LTD. Accordingly, Impel Transport, LTD is vicariously liable for the acts of Defendant Viktor Krecker for the causes of action above.

WHEREFORE, the Plaintiff, Gregory Horne, by counsel Ryan D. Etter of Ken Nunn Law Office, demands judgment against the Defendants, Viktor Krecker and Impel Transport, LTD for permanent injuries in a reasonable amount to be determined at the trial of this cause, for medical expenses, lost wages, and other special expenses, court costs and all other just and proper relief in the premises.

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REQUEST FOR TRIAL BY JURY

Comes now the plaintiff, by counsel, Ken Nunn Law Office, and requests that this matter be tried by jury pursuant to Trial Rule 38.

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